



“A will allows one to override the application of personal laws which govern intestate succession and ensure that the assets are distributed according to their wishes”

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MAKING OF A WILL

KEY PERSONS

NOTES



**Testator/
testatrix**

**Person making
the will**



Executor

**Person ensuring
practical execution
of the will**



Witnesses

**Two people, who
must sign on the will**



Beneficiaries

**Persons inheriting
the assets according
to their allocated
share**



Registration

Not mandatory



Mode

Oral or written



Other high-profile cases include a dispute over the ₹30,000 crore estate of Sunjay Kapur, chairman of automobile component maker Sona Comstar, between his mother Rani and widow Priya Sachdev. Kapur died in 2025 after collapsing at a polo match in England.

Octogenarian Bina Modi and her sons Lalit and Samir Modi have been engaged in a legal battle over the ₹11,000 crore business empire of the late K. K. Modi and its flagship Godfrey Phillips India.

Over past years, succession disputes have roiled many other businesses—including the MP Birla

Group, Kalyani Group and the Oberoi Group—as well.

TIME-CONSUMING

Some of the disputes are in the process of getting resolved. Some continue to fester. Almost all have big money riding on them.

Roughly ₹18.5 lakh crore worth of real estate and family wealth is stuck in often time-consuming litigation in Indian courts, according to a paper by the Centre for Policy Research. Inheritance and partition suits take between three and 20 years to get resolved.

Around 66% civil litigation in

India pertains to land or property disputes. For perspective, 11.3 million civil cases are pending in courts, according to the National Judicial Data Grid.

Yet, a survey in 20 cities conducted by personal finance periodical 1 Finance Magazine found that only 15.2% respondents have a will to ensure their assets go to beneficiaries of their choice.

WRITING A SOUND WILL

Taken together, these facts indicate the importance of a well-thought-out succession plan, as much in ordinary households as